

15. 9:00 AM CASE NUMBER: C24-01054

CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP

HEARING ON SUMMARY MOTION DEPT 16 NOTE: MSJ PAPERWORK TO BE FILED ON 12/1

FILED BY:

TENTATIVE RULING:

The hearing on the motion for summary adjudication shall be re-set to allow the Court to first consider the motions to seal. The new summary adjudication hearing date shall be April 22, 2026. No appearance is required on March 25, 2026.

Pursuant to California Rules of Court, Rule 2.551, when a party seeks to utilize information they do not view as privileged, but which the other side has designated as confidential, the party seeking to utilize the material, simultaneously with providing sealed envelopes to the Court, and publicly filing redacted copies, also files a Notice of Lodging which identifies the documents lodged, and typically indicates, as detailed in California Rules of Court, Rule 2.551, that all such records would be placed in the public court record unless the designating party files a timely motion or application to seal the records.

Here, defendant and the party moving for summary adjudication, CL La Fiesta Square CA LP (formerly known as SCC La Fiesta Square LP), substantially complied with that procedure (in the future, the caption on the Notice of Lodging should clearly indicate which documents are contained in the envelope— e.g., “John Doe Declaration in Support of Motion, Exhibit 3, unredacted”).

In response, plaintiff has filed a motion to seal the subject records. Accordingly, there is a motion to seal scheduled for April 15, 2026 with respect to the information being relied upon for the present summary adjudication motion.

Plaintiff separately filed another motion to seal records associated with plaintiffs’ opposition papers. A hearing on that motion is currently set for August 19, 2026.

However, this case is scheduled for a jury trial on June 8, 2026.

On the Court’s own motion, **the August 19, 2026 motion to seal hearing is advanced to April 15, 2026** (the hearing date for the original motion to seal). Any opposition to both motions to seal shall be due by April 2, 2026, and any reply on April 8th. No appearance is required on March 25, 2026.

16. 9:00 AM CASE NUMBER: C24-02203

CASE NAME: KAREN COLEMAN VS. UNITED STATES FIRE INSURANCE COMPANY

HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT

FILED BY: ZAIN JEEWANJEE INSURANCE AGENCY

TENTATIVE RULING:

This hearing is **vacated**. The Court sustained Defendant United States Fire Insurance Company’s Demurrer to the Second Amended Complaint and Motion to Strike Plaintiff’s Second Amended Complaint. See orders filed January 16, 2026. The Court is aware that Plaintiff is seeking relief from the Court’s January 16, 2026 order. A hearing for Plaintiff’s Motion for Relief is scheduled for August 19, 2026. No appearance is required on March 25, 2026.

17. 9:00 AM CASE NUMBER: C24-03465
CASE NAME: LOURDES DE LA MORA VS. JUAN GALLEGOS
*HEARING ON MOTION IN RE: SANCTIONS
FILED BY: DE LA MORA, LOURDES

TENTATIVE RULING:

Summary

Plaintiff Lourdes De La Mora's ("Plaintiff") Motion for Terminating and Monetary Sanctions against Defendant Juan C. Gallegos ("Defendant") is **granted**.

Background

On December 1, 2025, Plaintiff filed this motion for terminating sanctions, including (1) a request to stay this case until the Court's discovery order, issued September 23, 2026, is obeyed; (2) issue sanctions to prohibit Defendant from contesting ownership issues in the property at issue; (3) that Defendant be prohibited from seeking reimbursements for expenses or improvements; and, (4) finally, for a default to be entered against Defendant.

Plaintiff also requests monetary sanctions in the amount of \$1,126.79 as fees and costs for bringing this motion. The Motion is supported by Notice, Amended Notice, Memorandum of Points and Authorities, and Declaration of Counsel Rebekah J. Rose, and a proof of service. Counsel's declaration evidences an attempt to meet and confer to resolve this discovery issue prior to bringing this motion. No timely opposition was filed by Defendant.

Analyses

Defendant Failure to Oppose this Motion is Deemed to be Concession

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine (9) court days... before the hearing." Nine court days before the hearing is March 12, 2026. No timely opposition was filed by Plaintiff.

California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Terminating Sanctions

While this motion is unopposed, the Court is mindful of its duty to exercise terminating sanctions only when legally appropriate. Terminating sanctions under Code of Civil Procedure section 2023.030 authorizes a trial court to impose monetary sanctions, issue sanctions, evidence sanctions, or

terminating sanctions against ‘anyone engaging in conduct that is a misuse of the discovery process.’” *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 991. Subdivision (d) of section 2023.030 provides, “The court may impose a terminating sanction by one of the following orders: (1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process. (2) An order staying further proceedings by that party until an order for discovery is obeyed. (3) An order dismissing the action, or any part of the action, of that party. (4) An order rendering a judgment by default against that party.” Section 2023.030(b) authorizes this Court to impose an issue sanction “from supporting or opposing designated claims or defenses.”

The Discovery Act evinces an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. ‘Discovery sanctions “should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.”’ *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 487-488. If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’” *Doppes v. Bentley Motors, Inc.* (2009), 174 Cal.App.4th 967, 992, fn. omitted, quoting *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279–280 disapproved on other grounds in *Mileikowsky v. West Hills Hospital & Medical Center* (2009) 45 Cal.4th 1259.

The trial court may order a terminating sanction for discovery abuse “after considering the totality of the circumstances: [the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.” *Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246.

Applied here, the declaration submitted by Defendant’s counsel evidences that Plaintiff still has not complied with the Court’s September 23, 2025 order compelling discovery. The Court finds that such action demonstrates further lack of cooperation, and misuse of the discovery process. Accordingly, the Court finds good cause to grant this motion.

Ruling

1. Defendant’s Motion is **granted**.
2. Pursuant to Cal. Code of Civ. Proc. § 2023.030(b), the Court issues the following issue sanctions: The Court orders that Defendant is prohibited from contesting ownership issues to the property at issue, and that Defendant is prohibited from seeking reimbursement for expenses or improvements in this case.
3. The Court orders Defendant to pay sanctions to Plaintiff in the amount of \$1,126.79 as fees and costs for bringing this motion.
4. Defendant’s counsel is ordered to prepare and e-file a proposed order conforming to this ruling, attaching a copy of this tentative ruling, no later than five (5) days from the date of this hearing.
5. The Court sets this matter for a trial setting conference on September 21, 2026 at 8:30 a.m. in Department 16. Defendant’s counsel shall give notice of the Trial Setting conference in the

proposed order.

18. 9:00 AM CASE NUMBER: C25-01414
CASE NAME: ANTHONY PROVENCIO VS. ASPEN SURGERY CENTER, LLC,
***HEARING ON MOTION IN RE: TO ABATE OR, IN THE ALTERNATIVE, MOTION TO STAY**
PROCEEDINGS
FILED BY: ASPEN SURGERY CENTER, LLC,
TENTATIVE RULING:

Before the Court is Defendant Aspen Surgery Center, LLC (“Defendant”)’s motion to abate the class action complaint or, in the alternative, motion to stay the proceedings on the grounds that two earlier-filed class actions are currently pending that encompass the claims set forth in this case (and that exclusive concurrent jurisdiction applies). Plaintiff Anthony Provencio and Plaintiff Darlene Yvonne Enersen (collectively, “Plaintiffs”) oppose the motion on several grounds.

As a threshold issue, Courts have held that the rule of exclusive concurrent jurisdiction is subject to waiver and should be raised by demurrer where the issue appears on the face of the complaint and by answer where factual issues must be resolved, followed by a motion to abate or for summary judgment. (*People ex rel. Garamendi v. American Autoplan, Inc.* (1993) 20 Cal.App.4th 760, 771; see *BBBB Bonding Corp. v. Caldwell* (2021) 73 Cal.App.5th 349, 374.) Defendant did not raise the issue by demurrer or answer. The Court declines to find waiver, however, because Plaintiffs have not argued waiver. Further, as *Garamendi* observed, “In some reported decisions, it is not clear whether motions to abate or stay without answer or demurrer may have been brought.” (*Garamendi*, at p. 771, fn. 9 [citing *Figgs v. Superior Court* (1962) 204 Cal.App.2d 231; *Gorman v. Superior Court* (1937) 23 Cal.App.2d 173]; see also *Childs v. Eltinge* (1973) 29 Cal.App.3d 843, 848 [rule raised by motion to quash or dismiss].)

For the following reasons, the motion is **granted**.

Request for Judicial Notice

Defendant’s unopposed request for judicial notice is **granted**.

Brief Factual and Procedural Background

Latrice Johnson filed a Class Action Complaint in Contra Costa County Superior Court, Case No. C25-00480, on February 13, 2025 alleging wage and hour violations against Sequoia Surgical Pavilion LLC, NSH California, LLC, NSH Management of California, LLC, National Surgical Hospitals, LLC, Sequoia Surgical Center, L.P., Sequoia Surgical Center Holding Company, LLC, and Surgery Partners, Inc. (“*Johnson*”). She filed a First Amended Class Action Complaint on April 28, 2025 alleging an additional cause of action pursuant to California’s Private Attorneys General Act (“PAGA”).

The plaintiff in *Johnson* seeks to represent “All persons who worked for Defendants as non-exempt, hourly paid employees in California, at any time from June 12, 2023, until the date of trial (“Class”).” (Request for Judicial Notice (“RJN”) Ex. 2, ¶158.)

Lacen Patton filed a class action complaint against defendants SP Management Services, Inc., Surgery